

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.2686	0.1645	0.0088	0.2778	0.2457
Trial Fee-Shifting	0.2542	0.2222	0.0105	0.2921	0.3079
Complete Fee-Shifting	0.3619	0.0897	0.0546	0.3309	0.2410